

13	Carl, et al. v. Kimco Staffing Services, Inc. 2024-01446404	<u>Status Conferences Re Stay in Case Nos. 2024-01446404 and 2024-01428357</u> The court has reviewed the parties' joint status conference statement filed May 4, 2026 in Case No. 2024-01446404 (ROA 63). The cases remain stayed pending determination regarding approval of the proposed class action settlement in JCCP No. 5321 or further order of the court. See 7/31/25 Order (ROA 53 in Case No. No. 2024-01446404). The Status Conferences Re Stay scheduled for May 14, 2026 are continued to <u>October 15, 2026 at 2:00 p.m.</u> in Department CX105. The parties are ordered to file a joint status conference statement at least 5 court days before the hearing. The parties may file one joint status conference statement for both cases (Case Nos. 2024-01446404 and 2024-01428357) should they desire to do so. Clerk to give notice.
14	Kondori, et al. v. Mission Imports 2022-01295280	<u>Plaintiffs' Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiffs' motion for approval of an \$395,000 PAGA settlement. Subject to plaintiffs' submission of the documents identified below, the court grants the motion as follows: No enhancement award to either named plaintiff; \$118,500.00 for attorneys' fees; \$9,577.55 for attorneys' costs; \$5,150.00 for settlement administration fees; and \$261,772.45 total PAGA penalties (\$196,329.34 to LWDA). Plaintiffs are ordered to submit <u>by May 21, 2026</u> a proposed order and judgment (including the above amounts) <u>with all exhibits attached</u> (settlement agreement; amendments thereto; and notice letter (revised to include the above amounts)). The final accounting hearing is scheduled for <u>December 10, 2026 at 9:00 a.m.</u> in Department CX105. Plaintiffs shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service.
15	Poudel v. Mobilenet Services, Inc., et al. 2022-01276271	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for

preliminary approval of an \$400,000 class action and PAGA settlement. The court has the following questions and comments:

As to the settlement:

1. The court inquired in the January 22, 2026 order (ROA 113) why defendants are paying the settlement in installments. The court stated that if defendants are paying the settlement in installments due to defendants' financial condition, admissible evidence of defendants' financial condition must be provided, including appropriate financial documents such as balance sheets, cash flow statements, and profit and loss statements. The court also stated that the last sentence of paragraph 8.1 should be revised to state whether the timing described in that sentence is "whichever is sooner" or "whichever is later."

Plaintiff's counsel states that defendants "demonstrated a bona fide financial need" to structure "the settlement payment as an installment plan." Supp. Chang Decl. (ROA 118) ¶ 6. The parties have not submitted admissible evidence of defendants' financial condition, including appropriate financial documents such as balance sheets, cash flow statements, and profit and loss statements, as ordered by the January 22, 2026 order.

Paragraph 8.1 of the settlement agreement has also not been revised. Plaintiff's counsel's explanation in paragraph 8 of the Supplemental Chang Declaration does not address the issue regarding the lack of clarity in paragraph 8.1.

2. The reference to paragraph "1.2.1" in the amendment to the settlement agreement appears to be an error.
3. The references to paragraphs 1.41 and 1.43 in the amendment to the settlement agreement appear to be transposed.
4. The second-to-last sentence in paragraph 7.6 of the amendment to the settlement agreement should be removed, as it is inconsistent with the last sentence of the same paragraph.
5. In the January 22, 206 order, the court stated that while it will not determine the amount of attorneys' fees to be awarded until final approval, the court is unlikely to approve attorneys' fees in excess of 30% of the gross settlement amount absent unique circumstances. The court stated that plaintiff's counsel should address in the supplemental filing whether any such unique circumstances exist here. Plaintiff's counsel has not identified any unique circumstances. The court preliminarily finds attorneys' fees not to exceed 30% of the gross settlement amount reasonable for this case.
6. In the January 22, 2026 order, the court stated that while it will not determine the amount of any enhancement award to

		be paid to plaintiff until final approval, the court is unlikely to approve an enhancement award in excess of \$5,000 absent unique circumstances. The court stated that plaintiff should address in the supplemental filing whether any such unique circumstances exist here. The court also noted that plaintiff stated that plaintiff's enhancement payment is in part in exchange for "provid[ing] a general release of claims and a waiver of rights under California Civil Code Section 1542 to Defendant as part of the settlement." Poudel Decl. (ROA 96) ¶ 21; see <i>also</i> Brief (ROA 100) § VIII. The court stated that an enhancement award is not intended to serve as consideration for the release of additional claims, but rather to compensate class representatives for work done on behalf of the class, to make up for financial or reputational risk undertaken in bringing the action, and, in some circumstances, to recognize their willingness to act as a private attorney general, and that the court is unlikely to approve a settlement that provides an enhancement award in exchange for a general release. Plaintiff has not identified any unique circumstances warranting the higher amount plaintiff seeks. Plaintiff's counsel states that the enhancement award plaintiff seeks "is not consideration in exchange for [plaintiff's] release of individual claims, but rather to compensate plaintiff for time and effort plaintiff expended on behalf of the Class Members, and for the risks in being the named plaintiff in a class against his former employer." Supp. Chang Decl. ¶ 23. The former portion of plaintiff's counsel's statement contradicts plaintiff's declaration. The court preliminarily finds an enhancement award not to exceed \$5,000 reasonable for this case. 7. In the January 22, 2026 order, the court stated that defendants should advise, in a declaration filed with the court, whether, after making reasonable inquiry, they are aware of any class, representative or other collective action in any court that asserts claims similar to those asserted in this action (other than Case No. 2022-01284924, of which the court is aware). If any such actions are known to exist, the declaration shall also state the name and case number of any such case and the procedural status of that case, and describe the impact of the settlement on that case. This has not been done. 8. In the January 22, 2026 order, the court stated that all parties and counsel must disclose any relationship(s) with the proposed cy pres recipient. Plaintiff, defendants and defendants' counsel have not done this. <u>As to the proposed order (ROA 119, 121):</u> 9. In the January 22, 2026 order, the court stated that the settlement agreement and any amendments thereto and the
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